

An Act

ENROLLED SENATE
BILL NO. 1655

By: Stanley of the Senate

and

Miller of the House

An Act relating to the Oklahoma Adoption Code; amending 10 O.S. 2021, Section 7505-1.1, which relates to confidential character of hearings and records; modifying applicability of certain provisions; defining terms; updating statutory language; and declaring an emergency.

SUBJECT: Confidentiality of adoption proceedings

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 10 O.S. 2021, Section 7505-1.1, is amended to read as follows:

Section 7505-1.1. A. Unless otherwise ordered by the district court exercising jurisdiction over the adoption proceeding, all hearings held in proceedings pursuant to the Oklahoma Adoption Code shall be confidential and shall be held in closed court without admittance of any person other than interested parties and their counsel.

B. All papers, records, and books of proceedings in adoption cases and any papers, records, and books relating to such proceedings:

1. Shall be kept as a permanent record of the court and maintained in a separate file by the court clerk; and

2. Shall be confidential and shall not be open to inspection or copy except as authorized in Sections 7504-1.2, 7505-3.2, 7505-6.6, 7508-1.2 and 7508-1.3 of this title or upon order of a court of record for good cause shown.

C. Upon application and notice to the person or agency in whose possession the records being sought are held, and for good cause being shown, any court of record may, by written order reciting its findings, permit the necessary information to be released, or may restrict the purposes for which it shall be used. The findings shall include the reasons the information being sought cannot be obtained through the methods authorized by Sections 7504-1.2, 7505-3.2, 7505-6.6, 7508-1.2 and 7508-1.3 of this title.

D. The provisions of this section shall not prohibit ~~persons~~:

1. Persons employed by the court, the Department of Human Services, a child-placing agency, an attorney participating or assisting in a direct placement adoption, or any physician, minister, or other person or entity assisting or participating in an adoption from providing partial or complete identifying information between a biological parent and prospective adoptive or adoptive parent if a biological parent and a prospective adoptive or adoptive parent mutually agree to share specific identifying information and each gives written, signed notice of their agreement to the court, the Department of Human Services, the child-placing agency, or any attorney participating or assisting in the direct placement adoption pursuant to the Oklahoma Adoption Code; or

2. Persons employed by the Department of Human Services from sharing the contact information of an adoptive parent of an adopted child enrolled in the Children's Specialty Plan, and other relevant information necessary for the continuity of care of the child, with the contracted entity that administers the Children's Specialty Plan. As used in this paragraph, the terms "Children's Specialty Plan" and "contracted entity" have the same meanings as provided in Section 4002.2 of Title 56 of the Oklahoma Statutes.

E. Any person in charge of adoption records or having access to adoption records or information who discloses any information, including, but not limited to, all records and reports relevant to the case and any records and reports of examination of the minor's

parent or other custodian pertaining to an adoption proceeding, contrary to the provisions of this section, upon conviction thereof, shall be guilty of a misdemeanor.

SECTION 2. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 26th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 4th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____